



CHAPTER 35

An Act to make provision with respect to the validity and alteration by the court of financial arrangements in connection with agreements between the parties to a marriage, whether made during the continuance or after the dissolution or annulment of the marriage, for the purposes of those parties' living separately; and for purposes connected therewith. [17th July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This section applies to any agreement in writing made, whether before or after the commencement of this Act, between the parties to a marriage for the purposes of their living separately, being—

Validity and
alteration
by court of
maintenance
agreements.

- (a) an agreement containing financial arrangements, whether made during the continuance or after the dissolution or annulment of the marriage; or
- (b) a separation agreement which contains no financial arrangements in a case where no other agreement in writing between the same parties contains such arrangements.

(2) If an agreement to which this section applies includes a provision purporting to restrict any right to apply to a court for an order containing financial arrangements, that provision shall be void but any other financial arrangements contained in the agreement shall not thereby be rendered void or unenforceable but, unless void or unenforceable for any other reason, and subject to the next following subsection, shall be binding on the parties to the agreement:

Provided that—

(a) where the party chargeable under the agreement has died before the date of the commencement of this Act—

(i) this subsection shall not apply to that agreement unless there remain undistributed at that date assets of that party's estate (apart from any property in which he had only a life interest) representing not less than four-fifths of the value of that estate for probate after providing for the discharge of the funeral, testamentary and administrative expenses, debts and liabilities payable thereout (other than any liability arising by virtue of this subsection); and

(ii) nothing in this subsection shall render liable to recovery, or impose any liability upon the personal representatives of that party in respect of, any part of that party's estate which has been distributed before that date;

(b) no right or liability shall attach by virtue of this subsection in respect of any sum payable under the agreement in respect of a period falling before the commencement of this Act.

(3) Where an agreement to which this section applies is for the time being subsisting and the parties thereto are for the time being either both domiciled or both resident in England, and on an application by either party the High Court or, subject to the next following subsection, a magistrates' court is satisfied either—

(a) that by reason of a change in the circumstances in the light of which any financial arrangements contained in the agreement were made or, as the case may be, financial arrangements were omitted therefrom, the agreement should be altered so as to make different, or, as the case may be, so as to contain, financial arrangements; or

(b) that the agreement does not contain proper financial arrangements with respect to any child of the marriage,

the court may by order make such alterations in the agreement by varying or revoking any financial arrangements contained therein or by inserting therein financial arrangements for the benefit of one of the parties to the agreement or of a child of the marriage as may appear to the court to be just having regard to all the circumstances or, as the case may be, as may appear to the court to be just in all the circumstances in order to secure that the agreement contains proper financial arrangements with respect to any child of the marriage; and the agreement shall have effect thereafter as if any alteration made by the order had been made by agreement between the parties and for valuable consideration:

Provided that this subsection shall not apply to an agreement made more than six months after the dissolution or annulment of the marriage.

(4) A magistrates' court shall not entertain any application under the last foregoing subsection unless both the parties to the agreement are resident in England and at least one of the parties is resident in the petty sessions area for which that court acts, and shall not have power to make any order on such an application except—

(a) in a case where the agreement includes no provision for periodical payments by either of the parties, an order inserting provision for the making by one of the parties of periodical payments—

(i) for the maintenance of the other party, at a rate not exceeding five pounds a week;

(ii) for the maintenance of any child of the marriage, at a rate not exceeding thirty shillings a week in respect of each such child;

(b) in a case where the agreement includes provision for the making by one of the parties of periodical payments at rates not exceeding those aforesaid, an order increasing to such higher rate not exceeding the appropriate rate aforesaid, or reducing the rate of, or terminating, any of those payments.

(5) For the avoidance of doubt it is hereby declared that nothing in this section affects any power of the court before which any proceedings between the parties to an agreement to which this section applies are brought under any other enactment to make an order containing financial arrangements or any right of either party to apply for such an order in such proceedings.

(6) In this section—

(a) the expression "financial arrangements" means provisions governing the rights and liabilities towards one another when living separately of the parties to a marriage (including a marriage which has been dissolved or annulled) in respect of the making or securing of payments or the disposition or use of any property, including such rights and liabilities with respect to the maintenance or education of any child, whether or not a child of the marriage;

(b) the expression "child of the marriage" includes any child of both parties to the marriage, whether or not born in lawful wedlock, and any child adopted by both parties to the marriage; and

(c) the expressions "magistrates' court" and "petty sessions area" have the same meanings as in the Magistrates' Courts Act, 1952. 15 & 16 Geo. 6.
& 1 Eliz. 2.
c. 55.

Alteration of
maintenance
agreement
after death of
one party.

2.—(1) Where an agreement to which the foregoing section applies provides for the continuation of payments thereunder after the death of one of the parties and that party dies after the commencement of this Act domiciled in England, the surviving party may, at any time before the expiration of six months from the date when representation in regard to the deceased's estate is first taken out or, with the permission of the court, at any time thereafter before the administration and distribution of the estate is completed, make to the High Court any application for an order under subsection (3) of the foregoing section which the surviving party might have made immediately before the death; and, if any alteration in the agreement is made by the court on such an application, the like consequences shall ensue as if that alteration had been made immediately before the death by agreement between the parties and for valuable consideration.

(2) The provisions of this section shall not render the personal representatives of the deceased liable for having distributed any part of the estate of the deceased after the expiration of the said period of six months on the ground that they ought to have taken into account the possibility that the court might permit an application by virtue of this section after that period, but this subsection shall not prejudice any power to recover any part of the estate so distributed arising by virtue of the making of an order under this Act.

(3) In considering under subsection (1) of this section the question when representation was first taken out, a grant limited to settled land or to trust property shall be left out of account, and a grant limited to real estate or to personal estate shall be left out of account unless a grant limited to the remainder of the estate has previously been made or is made at the same time.

15 & 16 Geo. 5.
c. 49. (4) For the purposes of subsection (1) of section one hundred and sixty-two of the Supreme Court of Judicature (Consolidation) Act, 1925 (which relates to the discretion of the court as to the persons to whom administration is to be granted) a person by whom an application under this Act is proposed to be made by virtue of this section shall be deemed to be a person interested in the deceased's estate.

Short title,
commence-
ment and
extent.

3.—(1) This Act may be cited as the Maintenance Agreements Act, 1957.

(2) This Act shall come into force at the expiration of the period of one month beginning with the date of its passing.

(3) This Act shall not extend to Scotland or to Northern Ireland.

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Cheques Act, 1957

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ARRANGEMENT OF SECTIONS

Section

1. Protection of bankers paying unindorsed or irregularly indorsed cheques, &c.
2. Rights of bankers collecting cheques not indorsed by holders.
3. Unindorsed cheques as evidence of payment.
4. Protection of bankers collecting payment of cheques, &c.
5. Application of certain provisions of Bills of Exchange Act, 1882, to instruments not being bills of exchange.
6. Construction, saving and repeal.
7. Provisions as to Northern Ireland.
8. Short title and commencement.

SCHEDULE—Enactments repealed.